

2014 SCC OnLine All 7692

(BEFORE SUDHIR AGARWAL AND SUNEET KUMAR, JJ.)

Shri Krishna Kumar Bhargava Petitioner

v.

State of U.P. and 4 Others Respondents

Counsel for Petitioner:- Bidhan Chandra Rai

Counsel for Respondent:- C.S.C., Mahboob Ahmad

Writ - C No. - 33401 of 2014

Decided on June 30, 2014

Hon'ble Sudhir Agarwal, J.

Hon'ble Suneet Kumar, J.

1. It is contended that in the alleged checking report dated 24.02.2011, according to the department itself, the meter installed at the consumer's premises has been found defective and it is not mentioned anywhere that meter was made defective by consumer. In that view of the matter, it could not have been a case of theft of electricity energy under Section 126 of the Electricity Act 2003, and therefore, the impugned order is patently without jurisdiction.

2. It is also contended that if there is a meter which is defective it has to be seen, in what manner it is defective and thereafter the assessment order of defective meter can be made in accordance with rules applicable to defective meter which are different than Section 126 read with Clause 5.6 and 5.8 of U.P. Electricity Supply Code 2005.

3. Thirdly, it is contended that for making assessment and raising demand of Rs. 90,326/- the demand notice was already issued on 18.11.2011 (page 33 to the writ petition) while the alleged final assessment order was passed on 04.07.2013 which itself shows that respondents treated only show cause notice as the final assessment order and proceeded to make recovery and passed final assessment order on 04.07.2013 subsequently just to cover up their illegality, and that too, without showing as to how and in what manner assessment of Rs. 90,326/- is made against petitioner. This assessment is without following the procedure, clearly in violation of rules, as laid down by Division Bench in the *Ashok Kumar v. State of U.P.*, 2008 (6) ADJ 660 (DB).

4. Standing Counsel has accepted notice on behalf of respondents no. 1

to 3 and on behalf of respondents no. 4 and 5 notice has been accepted by Sri Mahboob Ahmad. Sri R.S. Umrao holding brief of Sri Mahboob Ahmad prays for and is granted three weeks' time to file counter affidavit. Rejoinder affidavit, if any, may be filed by the petitioner within one week thereafter.

5. List after expiry of aforesaid period.

6. In view of the above, until further orders, recovery pursuant to recovery citation dated 01.03.2014 issued by District Magistrate, Allahabad, shall remain stayed.

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